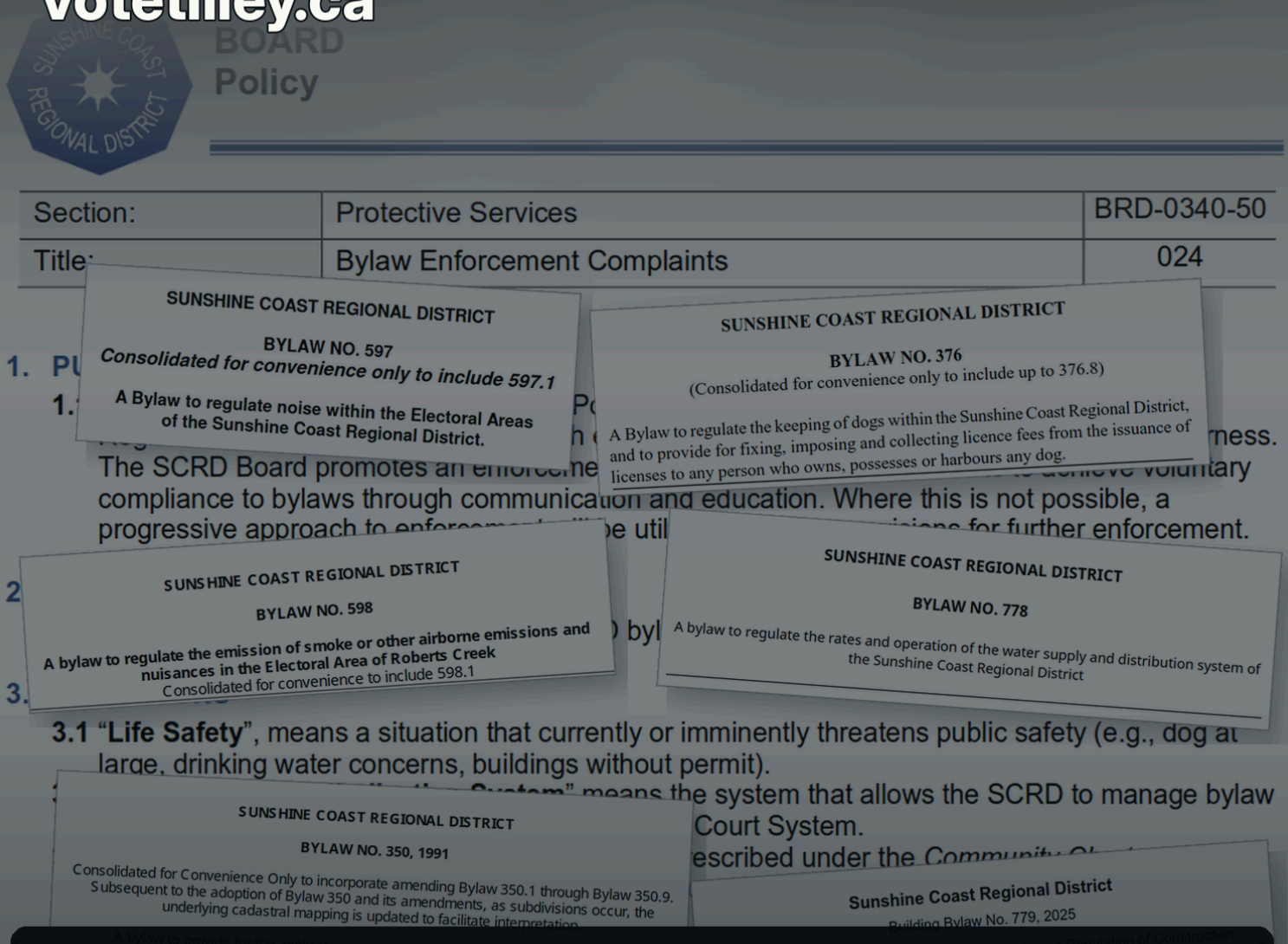
STEPS TO ACCOUNTABILITY: BYLAW ENFORCEMENT

OCTOBER 17

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DIRECTOR MAKES ENFORCEMENT ACCOUNTABLE

FAIR POLICIES • PERFORMANCE METRICS

FIX THE PROCESS, NOT INDIVIDUAL CASES

OVERSIGHT TOOLS PASS TO THE NEXT DIRECTOR



October 15, 2026

Steps to Accountability: Bylaw Enforcement

Fair rules, fair treatment.

A longtime Roberts Creek resident recently asked me a simple question:

Why have rules when they aren't effectively enforced?

It's a fair question.

Living together requires mutual respect, reasonable tolerance and recognition that our freedoms come with responsibilities to our neighbours.

Residents should be able to peacefully enjoy their homes and expect our bylaws to be applied fairly and consistently.

The SCRD already has a Bylaw Enforcement Complaints Policy. It establishes principles of fairness, impartiality, communication and progressive enforcement.

But after reviewing it, I have some questions.

The policy does not establish measurable response times, require regular public reporting of enforcement performance, or clearly define how residents can seek an independent administrative review when they believe their complaint was mishandled.

It provides for notifying complainants when enforcement is declined, but meaningful explanations are not consistently required.

How does the Board know whether the policy is working?

What should your Area D Director be doing?

A Director must not interfere in individual enforcement decisions. Those belong to staff, who must exercise their authority fairly and independently.

But the Director has a responsibility to govern the system.

As Director, I would work through the Board to:

1. **Establish service standards:** Clear expectations for response times, communication and follow-up.
2. **Ensure procedural fairness:** Meaningful explanations of decisions, respecting confidentiality and the rights of everyone involved.
3. **Provide accountability:** A clear process for reviewing concerns about how complaints were handled.
4. **Measure performance:** Regular, anonymized reporting on complaints, response times, unresolved cases and outcomes.
5. **Address systemic problems:** Identify where inadequate resources, unclear bylaws or ineffective procedures prevent reasonable enforcement.

These are standards I would seek to establish through the Board, beginning with a review of existing operational practices.

Accountability starts at the top.

Residents cannot expect every complaint to result in enforcement. They can reasonably expect fair treatment, timely communication and meaningful answers.

The Director's job isn't to tell enforcement officers what to do. It's to ensure the Board establishes a system that serves the public fairly and effectively.

And when that system isn't working, the Board needs to know why and take responsibility for improving it.

That's the difference between reacting to complaints and governing the system responsible for addressing them.

Stop Reacting. Start Governing.

Sources

- SCRD Bylaw Enforcement Complaints Policy (BRD-0340-50-024)
- BC Ombudsperson: Bylaw Enforcement Best Practices
- SCRD Bylaw Enforcement: How to Submit a Complaint